

State vs Aman on 31 January, 2025

TC 191/2025
STATE Vs. Aman
(Sadar Bazar Traffic Circle)

IN THE COURT OF GOWRI REGHUNATH : JMFC-10
CENTRAL DISTRICT : TIS HAZARI COURT : DELHI

TC 191/2025
STATE Vs. Aman
(Sadar Bazar Traffic Circle)

1. Case No. of the case	:	191/2025
2. The date of offence	:	29.12.2024
3. The name of the accused	:	Aman s/o Sh.Vinod Kumar
4. The offence complained	:	u/s 185, 3/181 of M.V. Act
5. The plea of the accused	:	Not guilty
6. Date of institution of the case	:	03.01.2025
7. Date of reserving the order	:	27.01.2025
8. The date of order	:	31.01.2025
9. The final order	:	Convicted

JUDGMENT

1. Vide this judgment, this court shall dispose of the present traffic challan issued against the accused Aman on 29.12.2024 under Section 185 & 3/181 of the Motor Vehicles Act, 1988 (hereinafter referred to as M.V. Act).

2. In brief, the case of the prosecution is that on the aforesaid date at about 06:20 p.m. at Barf Khana Chowk, within jurisdiction of circle Sadar Bazar, while driving from Y Point to STATE Vs. Aman (Sadar Bazar Traffic Circle) Tis Hazari Court, accused was found plying a motorcycle bearing registration no. DL-10AD-7125, without license and he was drunk driving having 130mg/100ml of alcohol. Upon issuance of challan for the aforesaid offences, the vehicle of the accused was impounded on the spot.

3. The challan was produced before this court on 03.01.2025, and the accused entered appearance

on the same date. Cognizance was taken of the offences stated in the challan. As the said offences are bailable, the accused was admitted to bail on furnishing of bail bonds. As per Section 274 BNSS, notice was framed on the accused under Sections 185 & 3/181 of M. V. Act to which the accused pleaded not guilty and claimed trial.

4. Since the accused chose to contest the challan, an application for release of the vehicle was filed. Vide order dated 07.01.2025, the said vehicle was released on superdari to the registered owner.

Prosecution evidence

5. In support of its case, the prosecution examined two witnesses, namely, HC Pawan Kumar (PW-1) and ASI Surender Kumar (PW-2).

6. HC Pawan Kumar (PW-1) deposed that on 29.12.2024, he was on duty at traffic circle Sadar Bazar with ASI Surender at Barf Khana Chowk. His duty timings were from 03:00 P.M. to 11:00 P.M. In the evening time, accused Aman was stopped while he was riding a motorcycle. No documents relating to motorcycle were produced by accused. They suspected that accused was in STATE Vs. Aman (Sadar Bazar Traffic Circle) intoxicated condition. Thereafter, on the instructions of ASI Surender, PW-1 checked the alcohol level of accused with alcometer. After checking, the test result was 130mg/100ml. Thereafter, ASI Surender issued a challan of drunk driving u/s 185 of M. V. Act. The accused also failed to produce his driving license, therefore challan was issued in respect of offence under Section 3/181 M.V. Act. The accused was identified in court by the witness. He further proved alcometer slip of drunk driving Ex.PW-1/A and the challan Ex. PW-1/B.

7. Thereafter ASI Surender (PW-2), who is the challaning officer, was examined. He deposed that on 29.12.2024, he was on duty at traffic circle Sadar Bazar with HC Pawan at Barf Khana Chowk. His duty timings were from 03:00 P.M. to 11:00 P.M. In the evening time at about 06:15 P.M., accused Aman was stopped while he was riding a motorcycle. No documents relating to motorcycle were produced by accused. They suspected that accused was in an intoxicated condition. Thereafter, on his instructions, HC Pawan checked the alcohol level of accused with alcometer. After checking, the test result was 130mg/100ml. Thereafter, PW-2 gave a challan of drunk driving u/s 185 of M. V. Act. The accused also failed to produce driving license, therefore challan was also issued in respect of offence 3/181 M. V. Act. The accused was identified in court by the witness. PW-2 further proved alcometer slip of drunk driving Ex.PW-1/A and the challan Ex. PW-1/B.

8. Both the aforesaid witnesses were not cross-examined by Id. Counsel for accused despite grant of opportunity.

STATE Vs. Aman (Sadar Bazar Traffic Circle) Statement of accused

9. Vide order dated 27.01.2025 prosecution evidence was closed. Thereafter statement of the accused was recorded under Section 351 BNSS in which all incriminating evidence was put to him. The accused admitted that he had consumed a small quantity of alcohol at the time of the incident. Further the accused admitted his signature on the challan Ex. PW1/A and Ex. PW1/B.

However, he denied all other evidences produced against him. He further stated that he did not wish to lead any defence evidence.

Final arguments

10. During final arguments, Ld. APP for State argued that the oral evidence of both prosecution witnesses along with the proof of challan and alcometer slip sufficiently establishes the case of the prosecution. Accordingly, it was submitted that the offences under Section 185 & 3/181 of M. V. Act are proved beyond reasonable doubt.

11. Per contra Ld. Counsel for accused submitted that the accused is being falsely implicated in the present challan. It was argued that the challan was issued wrongly. Accordingly, it was prayed that the accused be acquitted.

12. This court has heard the submissions of both sides, and considered the judicial record.

Analysis of Evidence

13. It is a settled principle of criminal jurisprudence, that the the accused is presumed to be innocent, and the burden of STATE Vs. Aman (Sadar Bazar Traffic Circle) proving the guilt of the accused beyond reasonable doubt lies on the prosecution.

14. Firstly, this court shall deal with the evidence in connection with the offence under Section 185 M.V. Act. In order to prove the commission of this offence, the prosecution must establish the existence of the following facts beyond reasonable doubt:

- i) The accused was driving or attempting to drive a motor vehicle
- ii) While driving/attempting to drive the motor vehicle, the accused had in his blood, alcohol exceeding 30 mg. per 100 ml blood
- iii) Such quantity of alcohol was detected in a test conducted by a breath analyser or any other laboratory test.

15. The testimony of both witnesses clearly establishes that the accused was drunk while driving his motorcycle and upon conducting breath analysis test using an alcometer, the alcohol level was found to be 130 mg/100ml. Further the accused was correctly identified by both witnesses. The oral evidence of both witnesses is further substantiated by the alcometer slip Ex. PW-1/A, which is admissible as per Section 203(6) M.V. Act. The said alcometer slip proves that the accused was subjected to a test by a breath analyser which detected the presence of 130 mg alcohol per 100 ml blood, which is well over the limit of 30 mg alcohol per 100 ml blood as prescribed by Section 185 M.V. Act.

STATE Vs. Aman (Sadar Bazar Traffic Circle) Since both witnesses were not subject to cross-examination, their evidence has remained unrebutted.

16. It is also pertinent to mention that the accused stated in his examination under Section 351 BNSS that he had consumed a small quantity of alcohol. He further admitted his signatures on the alcometer slip and the challan. It is a settled principle of law, that although the statement of the accused under Section 351 BNSS cannot be the sole basis for his conviction, the same can be relied upon to corroborate other evidence against him. In the present case, the admission of the accused in his statement supports the version of the prosecution.

17. Accordingly, this court finds that the prosecution has successfully proved that the accused was drunk driving his vehicle with 130 mg alcohol per 100 ml blood.

18. Now this court shall consider the evidence in relation to the offence under Section 3/181 M.V. Act. Both witnesses stated in their testimony that the accused did not produce any documents relating to the motorcycle he was driving. It was also stated by both witnesses that the accused failed to produce a driving license, and therefore challan was issued in respect of the offence under Section 3/181 M.V. Act.

19. The accused failed to produce any record of his driving license during trial. Further the witnesses remained unrebutted on this point.

STATE Vs. Aman (Sadar Bazar Traffic Circle)

20. Accordingly, this court finds that the prosecution has successfully proved beyond reasonable doubt that the accused was driving his vehicle without license.

Conclusion

21. From the above-mentioned discussion, this court is of the view that the prosecution has successfully established the guilt of the accused under Section 185 & 3/181 of M.V. Act beyond reasonable doubt. Accordingly, the accused stands convicted for the offences under Section 185 & 3/181 of M. V. Act. Announced in open court today i.e. 31.01.2025.

GOWRI
GOWRI REGHUNATH
REGHUNATH Date: 2025.01.31
13:34:18 +0530
(GOWRI REGHUNATH)
JMFC-10/Central/THC
31.01.2025

It is certified that this judgment contains 7 pages and each page bears my signatures. Digitally signed by GOWRI GOWRI REGHUNATH REGHUNATH Date: 2025.01.31 13:34:41 +0530 (GOWRI REGHUNATH) JMFC-10/Central/THC 31.01.2025